

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
(JUDICIAL DEPARTMENT)

Case No. Crl. Appeal No.1175 of 2019

Muhammad Asif

Versus

The State etc.

Sr. No. of order/ Proceedings	Date of order/ Proceedings	Order with signatures of Judge, and that of parties or counsel, where necessary.
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Crl. Misc. No.01 of 2022

23.02.2022

Hafiz Sohaib Altaf, Advocate for the petitioner.
 Mr. Hassan Mehmood Khan Tareen, Deputy Prosecutor
 General.
 Nemo for the complainant despite service.

Through this petition under Section 426 Cr.P.C. petitioner Muhammad Asif has sought the suspension of sentence awarded to him by the learned Sessions Judge/MCTC, Sahiwal vide judgment dated 18.09.2019 passed in case FIR No.407, dated 16.06.2017 registered under sections 302/34 PPC at Police Station Farid Town, District Sahiwal, whereby he was sentenced as under:-

➤ *Imprisonment for life under section 302 (b) PPC with compensation under Section 544-A Cr.P.C. of Rs.2,50,000/- to the legal heirs of deceased, in default whereof to further undergo simple imprisonment for six months.*

Benefit of Section 382-B Cr.P.C. was also extended to him.

2. The main stay of learned counsel for the petitioner is that more than two years and five months have lapsed but appeal of the petitioner could not be decided, therefore, the petitioner is entitled for the relief on statutory ground of delay in decision of his appeal. Learned Deputy Prosecutor General opposed the contention on the ground that the petitioner by his act is a desperate and hardened criminal and is not entitled to the relief claimed for.

3. Heard. Record perused.

4. Perusal of the record shows that Muhammad Asif, accused/petitioner with preplan entered into the house of complainant and allegedly made four fire shots with pistol 30-bore which hit on forehead of Farzana Bibi, daughter of the complainant because she has refused to

marry with him; doctor had observed effect of injuries as brain matter was coming out and fractures of underlying bone, frontal bone, parietal bone, occipital bone as well as of maxilla.

Foremost question before this Court is whether for declaring an accused as desperate, hardened or dangerous criminal his past record is essential or it could be ascertained from his act. In interpreting the words “hardened, desperate and dangerous used in fourth proviso to section 497 Cr.P.C., the Honourable Supreme court has focused on the phrase “in the opinion of the court” and held that previous record of accused is not necessary for such declaration rather from the act or role of an accused during the crime, his status as such can be ascertained. It has been held in a case reported as “Ali Akbar Versus The STATE” (2020 SCMR 1225) as under:-

“Even in the absence of previous record, an accused can be declared hardened, desperate or dangerous criminal subject to act, mode and manner of occurrence in that very case”

The Honourable Court in above case has also considered the interpretation of word “criminal” and its three-prefix hardened, desperate and dangerous as held in cases reported as “Gull Khan and others v. The State” (PLD 1986 Kar.629) and “MOUNDAR and others Versus THE STATE” (PLD 1990 SC 934).

5. According to dicta laid down, court has to form an opinion that the accused was a previous convict or a criminal of one of the categories described therein. The words "*in the opinion of the Court*" connotes that such opinion cannot obviously be subjective but must be based upon material placed before the Court, reasonably supporting the conclusion that the person concerned is a criminal of the classes described. The three categories have been defined in following terms;

The word "**harden**" has been defined to mean, inter alia, (1) to render or make hard; to indurate, (2) to embolden, confirm, (3) to make callous or unfeeling and (4) to make persistent or obdurate in a course of action or state of mind. The word "**hardened**" has also been defined to mean "made hard, indurated; rendered callous; hard-hearted; obdurately determined in a course".

The meaning of the word “**desperate**” inters-alia, are in relation to person: driven to desperation hence reckless, violent, ready to risk or do anything.

The word "**dangerous**", inter alia, means as fraught with danger or risk; perilous, hazardous, unsafe.

6. The light can be taken from above interpretation when dealing with a petition for suspension of sentence because above proviso of section 497 Cr.P.C. is parametria to section 426 where exactly the same words have been used. Proviso` to` S.426(1A) (c), Cr.P.C., provides that a person who in the opinion of Appellate Court is "hardened", "desperate " and "dangerous criminal", is not entitled to get benefit of suspension of sentence. Such categories have also been defined in case reported as “Rana NASARULLAH Versus THE STATE” (PLD 2011 LHR 544) with following expression:-

"Hardened criminal" is one who had developed rigid behavioural pattern toughened through experience; and not likely to change. All those persons, who had become rigid and devoid of any compassion, could also be termed as 'hardened'.

Criminal could be considered "desperate ", if he is willing to take risk fearlessly out of helplessness and despair "desperate criminal" could commit an act as a last resort without realizing its consequences.

"Dangerous criminal" connotes a person, who is able to cause harm and injury having horrible effects against the society. Gravity of offence of whatsoever nature, would bring an offender within the category of a "dangerous criminal."

In the case reported as “Rana SHAHID MASIH versus THE STATE” (2012 P Cr. L J 878), it has been held as under:-

Meaning of word "dangerous" can be ascertained in the light of the conduct of accused at the time of his arrest, his previous conduct, nature of offence coupled with its effect on society, his betrayal with reference to moral duties. If the word "dangerous criminal" is to be considered as previous convict, then the word "dangerous criminal" used in proviso of S.426 (1-A) (c), Cr.P.C. would become completely redundant and meaningless.

7. The act of the perpetrator is assessed from the facts of each case, depending upon intention, preparation, malice, grudge, heat and the enmity bore and is regarded in terms of ensued effects. Cross,¹ drawing on earlier judicial comments and practice, suggested that four factors affect judicial construction of seriousness as well as the factors of harm done; which are wickedness, social disapproval, social danger and social alarm.

¹ Chap.3.2 Calculating seriousness. Page 77 of book titled **Sentencing and Punishment The Quest for Justice** THIRD EDITION by SUSAN EASTON . CHRISTINE PIPER.

- (a) *The 'evilness of the perpetrator. This focus on degrees of wickedness is perhaps the most difficult, depending as it does on normative judgments and underlying moral codes. In the fragmented modern society there may be little consensus as to what actions are most blameworthy and, further, its focus on the mental state of the offender raises difficult questions as to intention, provocation, malice, and excuses.*
- (b) *Social disapproval. This is an equally slippery concept, again depending on society's values. The strength of public denunciation of an offence (within its offence category) is often strongly influenced by the age or sex of the victim: babies or children as victims generally attract more social disapproval and so the offending is construed as more serious. There might also be more social disapproval of an offender if he has committed the offence before.*
- (c) *Social danger or social alarm. The clearest example of this factor might now be terrorist-related offences: the degree of extreme social anxiety about global terrorism feeds into a heightening of perceptions of the severity of offences such as possession of a firearm or counterfeiting documents. Handling of stolen goods is also seen as very serious because of the danger that the incidence of theft will escalate if those willing to handle stolen goods are inadequately punished. Cross's example of social alarm upgrading seriousness is that of the person illegally entering a residential property--as opposed to commercial property--where the same amount of damage or theft causes a greater alarm.*

In providing early guidance on 'seriousness' the SGC approached the issue of culpability by focusing on the 'amount' of intention and identifying four 'levels' for sentencing purposes

Where the offender

- (iv) has the intention to cause harm, with the highest culpability when an offence is planned. The worse the harm intended, the greater the seriousness.
- (v) is reckless as to whether harm is caused, that is, where the offender appreciates at least some harm would be caused but proceeds giving no thought to the consequences even though the extent of the risk would be obvious to most people.
- (vi) has knowledge of the specific risks entailed by his actions even though he does not intend to cause the harm that results.
- (vii) is guilty of negligence.

The second element of gravity is the factual judgment on the amount of harm caused by the offending. On the face of it, this is a much easier judgment because 'harm' appears as an objective, value-free concept. Arguably this is so if we are talking about theft, where the offence is the deprivation of an amount of money or property whose value is easy to calculate. But, as we saw with our sentencing problem, the value to the victim may be sentimental' because, say, of the giver of the gift stolen, or the offence might be assault where the monetary value to be placed on the injury depends not only on the permanence or otherwise of the harm but

also on the context of the victim's life. A scar on the face is, arguably, much more serious if the victim is a model whose living depends on facial perfection, and a jaw injury might take away the pleasure of playing in a brass band, but this raises further questions. Should the loss to a particular individual be part of the calculation of harm or should the offender be punished proportionately to the harm an 'average' victim would have suffered from his offending? How do you put a price, not only on potential loss of earnings, but on the more difficult issue of loss of pleasure, whether caused by the loss of a hobby or of one of the five senses?

It can be calculated from above highlights that the harm is the criteria to label one as hardened, desperate or dangerous criminal. Act in one situation or against a person may not be regraded much harmful as compared to others; offence against vulnerable class is more serious particularly when one is reckless or know the effects of his act, part selected by him for causing injury or making one as sign of victimization. Following are the observation of Courts with respect to risk assessment of an offender:-

Accused desperate; refusal of suspension of sentence on statutory ground:-

1. Injuries with Sarya on the head

Statements of one of the prosecution witnesses, in the present case, had revealed that accused initiated the attack and at first instance inflicted **four injuries with his "sarya" on the head of the deceased**, and such fact was supported by the medico-legal report as well as the post-mortem report **which showed the desperation of the accused** while committing the offence. No other accused had been nominated for causing head injuries to the deceased. “ABDUL WAHAB versus THE STATE and others” (2012 YLR 1636 (LHR))

2. Rash and negligent driving. Statutory period, exception to;

Manner in which offence was committed showed not only callousness but also brutality on the part of accused as he had taken lives of four minor children due to rash and negligent driving of his tractor trolley during school timings which required special care. Petition was dismissed in circumstances. “MUHAMMAD RAFIQUE versus The STATE and others” (2014 PCrLJ 1695 (LHR))

3. Qatl-e-amd and robbery

Petition for suspension of sentence on ground of statutory delay in decision of appeal. Accused and co-accused, with their faces covered, allegedly tried to rob a motorcycle from the complainant party and during the scuffle when the face of the accused was revealed, he fired at the deceased and killed him. Alleged act of the accused, prima facie, rendered him a **desperate criminal** not entitled to the concession of release on bail through suspension of sentence. “MUHAMMAD SHAHBAZ versus THE STATE and others” (2013 PCrLJ 45 (LHR)).

4. Facilitated the co-accused in commission of Murder

Accused had snatched rifle from the deceased, threw him down, kept a guard so that other eye-witnesses could not intervene and **he facilitated the**

co-accused to cause as many as twenty-two incised injuries including the amputation of right hand and right leg of the deceased; Court while refusing to suspend the sentence on statutory ground was not supposed to touch the merits of the case, but Court could "take into consideration the evidence collected for purpose of determining whether the accused was a criminal of the categories prescribed in S. 426(1-A), Cr.P.C." Accused being hard-hearted callous and of a desperate character was not entitled for suspension of sentence. "MUHAMMAD MUSTAFA versus THE STATE" (2001 MLD 1335 (LHR))

Death sentence was confirmed while declaring the accused as desperate

1. **Over a petty incident involving children playing cricket** the accused persons had gone to the complainant party's house and launched an attack with daggers and resultantly killed two persons and injured another by giving them multiple dagger blows mercilessly. Injuries attributed to the accused persons had proved fatal. Accused persons appeared to be **desperate** persons evoking no sympathy in the matter of their sentences of death. Convictions and sentences of death recorded against the accused persons were maintained. "MUHAMMAD AKBAR alias BHOLA and others versus The STATE and others" (2019 SCMR 2036).
2. **A young lady in her prime had been butchered** by the accused inside her house **by giving as many as ten chhurri blows on different parts of her body.** Such conduct displayed by the accused clearly showed that he was a cruel and **desperate** person who deserved no sympathy in the matter of his death sentence. Appeal was dismissed accordingly. "TARIQ IQBAL alias TARIQ versus The STATE" (2017 SCMR 594).
3. **For committing murder, the accused not only used a pistol but also a screw-driver** with the use of which he had tried to take out the eyes of some of his victims. Record made it abundantly clear that the accused had acted in the matter brutally and mercilessly and that he was a **desperate** person evoking no sympathy in the matter of his death sentence. Appeal was dismissed accordingly and death sentence awarded to accused was upheld. "KHALID MEHMOOD versus The STATE" (2017 SCMR 201).
4. Accused used to associate with serious criminals because of which the deceased, who was his relative, rebuked and reprimanded the accused. **On the basis of such rebuke and reprimand the accused and co-accused persons not only killed the deceased** but also, injured three eye-witnesses of the occurrence; Accused was a **desperate** person and conduct displayed by him surely detracted from any sympathy to be extended to him in the matter of his death sentence. Appeal was dismissed accordingly and death sentence awarded to accused was upheld. "ASHIQ HUSSAIN versus The STATE" (2017 SCMR 188).
5. Accused murdered deceased in the most brutal and **desperate** manner and **exhibited inhuman attitude by cutting into pieces the dead body of deceased** and throwing the same at different places. Sentence modified by High Court was set aside and accused was awarded death penalty---Appeal was dismissed. "KHURRAM MALIK and others versus THE STATE and others" (PLD 2006 SC 354).
6. **Accused had committed the murder of a young girl of 13/16 years** without any justification in a brutal manner acting as a **desperate** and hardened criminal and had fired two shots at the innocent girl. Imposition of normal penalty of death was fully justified in circumstances. Conviction and

sentence of accused were upheld accordingly by refusing him leave to appeal. “MUHAMMAD AKHTAR ALI versus THE STATE” (2000 SCMR 727).

7. **Accused in a desperate manner had taken the law in his own hands and mercilessly murdered the deceased persons by attacking the police party** while it was patrolling the area in discharge of its official duty and such offence needed deterrent punishment. Accused was a hardened criminal and deserved normal sentence of death under S. 302, P.P.C. Convictions and sentences of accused including the sentence of death were affirmed by Supreme Court in circumstances. “MURSALIN alias DENNI versus THE STATE” (1999 SCMR 2683).

8. The act of the petitioner for causing four fire arm injuries that too on the face and head simply on refusal of victim to marry with him, by all means, labels him a desperate, hardened and dangerous criminal. Thus, he is not entitled to the relief prayed for, therefore, the petition in hand, having no force or merit, is **dismissed**.

(Muhammad Amjad Rafiq)
Judge

Approved for reporting

Judge